

Notice of Additional Authority (RAP 10.8)

COURT OF APPEALS OF THE STATE OF WASHINGTON
DIVISION ONE

ZACKARIAH BENNETT, Appellant,
v.
MELVINA MANNING, Respondent.
No. 87007-6

NOTICE OF ADDITIONAL AUTHORITY (RAP 10.8)

Appellant respectfully submits this Notice of Additional Authority under RAP 10.8 to assist the Court in resolving the issues presented on appeal.

I. AUTHORITIES

1. Story v. Shelter Bay Co., 52 Wn. App. 334, 345, 759 P.2d 1181 (1988).
2. RAP 9.1(a) and RAP 9.12.
3. CR 56(h).
4. RPC 3.3(a)(1).
5. Mathews v. Eldridge, 424 U.S. 319 (1976).

II. APPLICATION

These authorities reinforce Appellant's argument that appellate review must be limited to evidence properly in the record. The June 28, 2024 transcript confirms that Respondent's counsel invoked res judicata based on a 2022 DVPO case, despite the DVPO court expressly stating that those issues were beyond its scope. Respondent's reliance on materials outside the record violated RAP 9.1, RAP 9.12, and RPC 3.3(a).

III. CONCLUSION

Appellant respectfully directs the Court's attention to these authorities and record references as they confirm due process violations and procedural error in the trial court's adoption of Respondent's unsupported factual assertions.

Dated: November 13, 2025



Respectfully submitted,

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